

**Preservation and Privacy in Canadian Archives: Managing Public Records in the
Digital Era**

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With privacy concerns at an all-time high, Canadian archival institutions are tasked with preserving records while protecting the personal data of individuals and organizations. Archival work and records management, while distinct practices (Yeo, 2018, pp. 19-21), share similar missions "to not just collect and store materials...[but] also to ensure their accessibility" (Čtvrtník, 2023, p. 2). Records management and archival work share similar goals, such as storing, retrieving, and managing records, though archivists generally retain records long-term rather than destroying them. However, while alike, records management and archives differ in their broad definitions. According to William Saffady, "records management is a specialized discipline that is concerned with the systematic analysis and control of information created, received, maintained, or used by an organization pursuant to its mission, operations, business processes, and activities" (Saffady, 2021, p. 1) and has been a term used since the 1940s (Yeo, 2018, p. 18). Whereas Čtvrtník (2023) asserts that "archives are one of the most important places where the right of a free society to access to information, the right to know and, with it, the freedom of expression are exercised" (p. 2). While archivists preserve records involved in the cultural history of the past, records managers efficiently control records of the present and are concerned with their usefulness to an organization. However, their concerns with the safety and security of their records are the same since "any preservation of data or records automatically entails the potential risk of misuse" (Čtvrtník, 2023, p. 197).

Archivists manage records by adhering to legal and ethical standards to ensure privacy while maintaining public access. Though archival work is similar to records management, archival work tends to "take over from records management and records keeping at the stage when records are still managed and preserved by their creators, be they public institutions, private entities, natural persons, families, associations, and so on" (Čtvrtník, 2023, p. 3). It also differs from records management in that archival records in the current digital era are expected to be easily accessible. Perhaps blame for this expectation can be put on social media's open and desensitized nature; however, blame can also be put on technological advances. The digital era has "opened up an infinite space for the creation, dissemination, and consumption of information" (Čtvrtník, 2023, p. 244), for both the better and worse. While information misuse issues persist, their impact has dramatically increased with the rise of remote access to digital data (Čtvrtník, 2023, p. 161).

Records management and privacy compliance are integral to responsible archival practices. This interconnection is particularly important in today's digital age, where large amounts of personal data are generated and stored in cloud databases, which the wrong people can access should they break through security firewalls. While records management focuses on how records are created, stored, maintained, and disposed of, privacy compliance focuses on how personal information is handled according to legal and ethical standards, protecting individuals' privacy and rights. Privacy compliance is a part of the ethical standards that those in records management must adhere to. Privacy compliance also aids in preserving the integrity of records and the privacy of individuals and organizations. However, both affect a record's usability

over time. This process in Canada is particularly important as archives must preserve historical records while maintaining public trust.

This essay explores issues of public records management and privacy protection in Canadian archives, with a focus on the rise of digital records. It examines how archivists must manage ever-changing privacy laws and digital security risks to preserve historical information and public trust. To better understand the scope of these challenges, this essay will also inspect the roles of archival institutions, the legal and ethical frameworks governing privacy within Canada, and the tools and strategies used to safeguard sensitive information in the current digital age.

Canadian archival institutions, such as Library and Archives Canada (LAC) and provincial archives, are critical players in maintaining national, provincial and territorial records. These institutions comply with national standards and best practices set by the Canadian Council of Archives (CCA) that ensure proper organization, preservation, and accessibility of records. Government records, in particular, are necessary for maintaining transparency, accountability, and public trust. Once they are no longer in active use, government records are transferred to public archives for long-term preservation, a task which archivists took up in the early 20th century (Yeo, 2018, p. 16). Though the LAC and CCA provide formal discussions around privacy and data protection, some archival organizations, like the Alberta Conservation Association (ACA), lack them (Krucker & D'Angela, 2021, p. 9). Additionally, Krucker and D'Angela note that the ACA's Code of Ethics and Professional Conduct has no guidance on upholding privacy and barely even mentions privacy except that the ACA respects its

existence (p. 9), which is no help to archivists within Alberta archival institutions like the Provincial Archives of Alberta (PAA) or municipal archives.

Archival work constantly deals with curve balls, such as the growing number of digital records, which, in turn, create new challenges for access, security, and preservation (Yeo, 2018, p. 21). As records continue to be created by digital processors, archivists and records managers must adopt new strategies to address these challenges, particularly in light of evolving privacy laws and technological advancements such as Canadian Bill C-27, also known as the Consumer Privacy Protection Act (CPPA) and phishing scams targeting employees with access to valuable information. The CPPA, enacted in 2023, was created to strengthen the laws against current technological advancement in the private sector regarding personal information and replaced parts of the Personal Information Protection and Electronic Documents Act (PIPEDA), the primary law regarding privacy compliance within Canada since 2000. Though the CPPA does not really affect archivists, it does affect records management roles within the private sector of Canada, which does affect how records management is instructed within Canada.

Privacy is a significant concern in archival work, especially in managing personal information. In Canada, privacy is regulated by federal and provincial laws governing data collection, use, and disclosure. These privacy laws, like others around the world, "manage information from two directions: making it open and keeping it closed" (Lawrence, 2016, p. 33). Among the key pieces of legislation that guide privacy practices in archival work are the Personal Information Protection and Electronic Documents Act (PIPEDA), the Privacy Act, and the Access to Information Act. These

laws define the ethical and legal boundaries within which archivists and records managers must operate. Each of these privacy acts references archives and secures their exemption to many legislative rulings as privacy and archives stand in opposition to one another archives are meant to provide access to information (Krucker & D'Angela, 2021, p. 2)

PIPEDA, like the CPPA, applies to private-sector organizations but also influences archival practices by regulating personal information collection, use, and disclosure. (Krucker & D'Angela, 2021, p. 6). The Privacy Act, in contrast, determines how federal government departments and agencies manage personal information. It restricts using and disclosing personal information only for specific purposes and instructs how individuals' privacy rights should be protected. The Access to Information Act complements the Privacy Act by allowing public access to government records, with exceptions for personal data and records that "contain information that is not available to the public or is otherwise not generally known" (Saffady, 2021, p. 58).

In addition to these federal laws, each province and territory in Canada has its own privacy legislation. For example, Alberta created the Protection of Personal Information Act (PIPA) in 2004. As stated on the Office of the Information and Privacy Commissioner of Alberta's website, "PIPA provides individuals with the right to request access to their own personal information while providing private sector organizations with a framework for conducting the collection, use and disclosure of personal information" (Legislation section). This provincial law ensures that privacy is consistently protected across the country, regardless of jurisdiction. For archives, when it comes to personal information contained in a record, they are let off the hook in collecting these

records unless otherwise specified by the donor of said records (PIPA, 2004). Alberta also created the Freedom of Information and Protection of Privacy Act (FOIP Act) in 1995, which "aims to strike a balance between the public's right to know and an individual's right to privacy, as these rights relation to information held by public-sector bodies in Alberta" (Overview section). An example of the usage of FOIP can be seen within municipal archives in Alberta. Patrons who request records protected by this act are informed of such, like the City of Edmonton Archives, which states that their records "contain material that is protected in alignment with the Freedom of Information and Protection of Privacy (FOIP) Act, and some material may be restricted in alignment with this Act" (Records Restricted by the FOIP Act section)

Archives are valuable resources for researchers, historians, and the public as they provide insights into past events, social trends, and government policies. However, as mentioned throughout this essay, they also contain personal information that could be harmful or intrusive if made publicly accessible. Archivists have many strategies to protect privacy while allowing access. The most common technique is redacting sensitive information before making it available to a patron. For example, personal identifiers like names and addresses may be blacked out in documents. Redacting information in archival documents ensures that sensitive data is not inadvertently disclosed while maintaining the record's archival value. Individuals in some countries have a right to be forgotten, which protects them from identity theft, even after death. In many parts of the world, legislatures "have started to supplement data privacy laws with sectoral data security laws...[which] aim to protect individuals from specific harms resulting from unauthorized access to personal information, in particular, identity theft"

(Determann, 2015, p. 6). To keep up with issues like this and more, lawmakers worldwide must issue and revise laws constantly (Determann, 2015, p. 110). However, due to the rapid evolution of technology, rules and regulations cannot always keep up with privacy compliance issues and may not be created until after an incident like a data breach occurs. With data breaches becoming commonplace, "citizens around the world are wary that not even the NSA can keep data secure" (Determann, 2015, p. 119). If the NSA cannot keep data secure, archival records, including government information, may not be as safe as initially thought. Additionally, though this paper will not be looking at non-government archives such as genealogy societies, it should be noted that a more considerable concern for privacy compliance issues "is the lack of guidance found in non-government archives" (Krucker & D'Angela, 2021, p. 2).

Another method for managing privacy concerns is the use of access restrictions. Certain records may be restricted for a specific period of time to protect individuals' privacy. These restrictions are determined based on legal requirements or ethical measures to "enhance accountability and transparency in public administration, and especially of laws that purport to give citizens rights of access to information held by governments and public-sector organizations" (Yeo, 2018, p. 66). One example is that under the Privacy Act, records containing personal data may be withheld from public access for a certain number of years after their creation, typically twenty years after a person's death (Privacy Act, 1985). Archivists must also consider ethical policies when determining whether to grant access to certain records. Sometimes, they may need to consider a record's cultural, social, or historical context, like those containing information about minority groups or communities, which may require additional

consideration before being made accessible to the public. This is particularly important within Canada due to ongoing conflict between all levels of government and First Nations groups. As stated by Kazuhito Isomura (2021) in his work, *The Gap Between Knowledge Management and Records Management*, "to accomplish new tasks, records managers and archivists require a wider skill-set: communication skills, change management skills, leadership, people management, project management, enthusiasm, persuasion, and tenacity" (p. 17).

Though Determann's *Field Guide to Data Privacy Law* is used in this essay to provide information regarding privacy laws, it must be noted that it is based mainly on European privacy laws that are nearly ten years old and will have changed by now. That being said, Saffady (2021) does refer to the General Data Protection Regulation (GDPR), which is "the most widely used publicized data protection law" in the EU (p. 210). Čtvrtník (2023) also discusses the GDPR and states that it "considers the data storage limitation principle to be one of the fundamental pillars of personal data protection" (pp. 216-217) where an organization cannot keep information for longer than they need it. However, archives are the exception to that rule so long as the gathered data is accurate. Determann (2015) also provides valuable definitions of data protection and privacy law and how they differ. She defines data protection as "protecting individuals (the data subjects) from the effects of automated data processing" (p. 4), and data privacy laws are "primarily intended to protect individuals from intrusion into seclusion and interception of confidential communications" (p. 5). This essay also glosses over the fact that the terms 'record' and 'information' are not the same, yet are treated interchangeably. As Yeo (2018) notes, "Although [privacy laws] are usually

called 'freedom of information,' 'right to information' or 'access to information' laws, some commentators observe that citizens normally gain access to records rather than information" (p. 66), nevertheless, questions surrounding the overarching role of information continue to permeate the professional discourse in the twenty-first century (Yeo, 2018, p. 53).

Digital records have introduced new challenges for both records management and privacy compliance. Records are no longer considered a "unit of written text" (Yeo, 2018, p. 29). While digital records have many advantages regarding storage costs and findability (Saffady, 2021, p. 178; Yeo, 2018, p. 31), they also enable risks related to security, like data breaches, even with "their seeming ephemerality" (Yeo, 2018, p. 31). Not only do records management need to work "information security to determine whether specific record retention rules pose security problems" (Saffady, 2021, p. 27), but archivists must do so as well since their main priority is to preserve documentation in secure facilities, whether physical or digital. Moreover, archivists must implement secure storage solutions, including encrypted systems, to safeguard sensitive data. Encryption protects records by converting data into a code that can only be read by those with the appropriate decryption key, ensuring that unauthorized individuals cannot access personal information.

Like records managers, archivists must establish access controls to limit who can view or interact with certain records, particularly those containing personal or confidential information, and just like paper records, archivists must also ensure that digital records are properly managed to ensure long-term accessibility. This is especially important in the current digital era, where "the great majority of records will be created,

maintained and used in digital form" (Yeo, 2018, p. 32). This includes addressing issues such as file format obsolescence by ensuring that digital records remain readable as technology changes. The challenge of preserving digital records is aggregated by the rapid pace of technological advancement, which can lead to the degradation or inaccessibility of digital formats over time, something that must be avoided when it comes to archival records. However, this does not mean that archivists should completely "reject older understandings of records and replace them with newer concepts" (Yeo, 2018, p. 32). Still, the adapting period for archivists may never end as the digital era continues to evolve, and some classic concepts may need to be continuously revised, especially regarding what a 'record' even is (Yeo, 2018, p. 34).

As archival work continues to evolve in response to technological advancements, especially as records are being created and stored digitally, balancing public access with the protection of personal privacy has become much more complex. The increasing volume of digital records has created new security risks and complicated long-term preservation techniques that must now go beyond protection in a physical storage facility. As discussed, privacy laws such as PIPEDA, the Privacy Act, and the Access to Information Act shape the legal framework around archival practice. These laws protect personal information while allowing access to historical and public records. However, as technological advancements outpace legislative changes, the responsibility to uphold privacy compliance in the digital age requires constant vigilance, adaptability, and innovation by archivists and records managers. Strategies such as redaction, access restrictions, and applying privacy laws are essential tools. Also, implementing digital security measures, such as encryption and secure access controls, is vital in protecting

the privacy of individuals and organizations whose records are kept on cloud storage since the longer a record is kept, the greater the opportunity for unauthorized access, unauthorized disclosure, theft, or other security breaches (Saffady, 2021, p. 27).

Ultimately, preserving historical records and protecting privacy are interconnected responsibilities requiring careful management and ethical consideration. The ongoing collaboration between archivists, records managers, legal experts, and policymakers will be essential in shaping a future where access to information and privacy protections are respected, ensuring that the archival profession remains transparent, responsible, and ethical. Both records managers and archivists play an important role in applying human rights. The first application "is the right to know, the right of access to information and records, [the] second, the protection of privacy and personality rights" (Čtvrtník, 2023, p. 235). Continued use of forms such as FOIP requests in Alberta will maintain restricted access to materials while protecting personal information.

In conclusion, the continued growth of digital records, alongside the evolving landscape of privacy law, presents significant challenges and opportunities for the archival community in Canada. By adhering to rigorous records management practices and upholding privacy compliance, archival institutions can safeguard the public's right to access historical information and the privacy of individuals, fostering an environment of trust, accountability, and respect for the past and present.

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